

BYLAWS

DAB ENERGY TRUST

Doubs · Adamstown · Buckeystown — Our Home, Our Coalition

Draft governing instrument to be adopted by County Council ordinance and attached to any CDI site-plan condition or Development Rights and Responsibilities Agreement. Not legal advice. Formerly styled Adamstown–Buckeystown Energy Trust in prior draft filings; prefer DAB ENERGY TRUST in all public-facing materials.

Article I — Name and seat

The name of this body is the DAB ENERGY TRUST (Doubs · Adamstown · Buckeystown). The principal office shall be in Doubs, Adamstown, or Buckeystown, Frederick County, Maryland. Meetings shall not be confined to Winchester Hall.

Article II — Purpose

Purpose. Keep Frederick rural. The Trust holds and pays an energy dividend to residential electric service points in the rural host-community road-box described in Article III, so farmers and rural residents can remain in their homes and are less pressed to put land or houses up for sale under sprawl and data-center edge pressure. Grandfather = stay incentive, not a growth subsidy. Funded by Critical Digital Infrastructure electrical load and by rent from campus-serving public infrastructure. The Trust is not a general-fund account and is not a countywide slogan. ZIP codes are not the eligibility lock.

Exclusive by design. Tier 1 is the rural road-box of Doubs, Adamstown, and Buckeystown only — not Frederick City, not other county communities. The dividend is the floor; the boundary is the wall. This Trust exists so these communities keep their homes and do not open the gate to freeloader expansion, apartments, or sprawl without the process in Articles III, IX, and IX-A.

Article III — Beneficiaries

Article III — Beneficiaries (conceptual rewrite, for Council to enact with the ordinance). Tier 1 only: a homestead or a residential lease of twelve months or more at a residential electric meter whose USPS street-delivery service address lies within the Trust's rural host-community road-box in Frederick County — west Basford Road, east the Monocacy River, south Tuscarora Road, north the Elmer Derr / Harshman / New Design / Lime Kiln Road belt — including Doubs, Adamstown, and Buckeystown addresses in that box, and staying short of the Ballenger Creek suburban mass. Lime Kiln Run is a creek, not a road boundary. One share per electric meter. Excluded: campus owners and affiliates. The Council may exclude non-homestead second homes. No commercial account except a farm or home-based account at a residence.

Soft public illustration (not a survey metes-and-bounds): about **2,000** eligible meters / about **5,500** residents (Medium confidence; exact GIS clip pending). Ranges until that clip: roughly **1,700–2,500** housing units and **4,600–6,700** residents. Census Designated Place figures for Adamstown (**710** households) and Buckeystown (**499** households) — **1,209** together — are Adamstown / Buckeystown CDP 2020 stats (not the Trust base). They are place statistics only and are not the Article III Trust base. Doubs is not a Census CDP; Doubs addresses in the road-box are Tier 1 with the rest of the box. This instrument does not state a separate Doubs-only census count.

Before the first payment, the County Council shall publish a meter eligibility list mapped to the road-box (and any parcel refinements by ordinance). ZIP codes are not the lock — not ZIP 21704, and not any

ZIP. The Council may correct boundary or addressing errors; it may not expand Tier 1 beyond this rural box except by board vote under Article IX, elder consult under Article IX-A where it applies, AND a new ordinance titled as an expansion.

Article IV — Board

Five voting members.

Community representation lock (required): at all times the board shall include at least one voting seat held by an Adamstown resident, at least one voting seat held by a Buckeystown resident, and at least one voting seat held by a Doubs resident, each with a service address inside the road-box. Each of the three communities must have representation on the Trust board at all times.

Default apportionment: two Adamstown seats, two Buckeystown seats, and one Doubs seat (2 / 2 / 1). That split satisfies the each-town rule. The County Council may change the apportionment by ordinance only if each of the three communities still retains at least one voting seat. This Article does not state a separate Doubs household or meter count and does not weight seats by an unverified Doubs-only population.

The Doubs seat is held by a resident whose USPS street-delivery service address lies in Doubs, inside the road-box. Doubs is folded into the box with Adamstown and Buckeystown.

Staggered four-year terms. Quorum: three. Chair must live in Adamstown, Buckeystown, or Doubs, inside the road-box. Treasurer required. County Director of Finance or designee sits non-voting. No employee or equity holder of a CDI operator or master developer.

Article IV-A — Elections sketch (rough outline; not final election code)

This Article is a short sketch for bylaws discussion and for a town-hall script note. It is not a finished election code and does not displace Maryland election law where applicable.

Weekend town hall open to Tier 1 residents whose service address lies in the rural road-box (Doubs, Adamstown, and Buckeystown). Preferred venue: Adamstown Park or Buckeystown Park. Alternate venues in Doubs, Adamstown, or Buckeystown may be used if the preferred venue is unavailable.

Voters show proof of residence at check-in: Maryland driver's license or ID with a Tier 1 service address, a recent utility bill at that address, or a current residential lease of twelve months or more at that address. Keep the process simple and local. The board shall publish notice of the town hall date, place, and proof-of-residence rules at least fourteen days in advance. Contested seats may be decided by show of hands or written ballot of those checked in; details to be fixed by board resolution consistent with this outline and with any County Council ordinance.

Article V — Duties

Receive megawatt reports and infrastructure-lease rent. Set the annual dividend within the proposed ordinance floor, formula, and cap (Schedule A — proposed, not enacted until Council adopts). Direct payment as a utility credit or county rebate. Publish by March 31 each year: MW online, receipts, meters paid, dollars per meter. Vote against any sweep of Trust principal into the general fund. Protect the Tier 1 boundary: oppose expansion of beneficiaries outside the rural road-box except under Articles IX and IX-A.

Article VI — Funds

Restricted accounts: (1) Dividend, (2) Infrastructure rent, (3) Reserve equal to six months of the floor. Fiscal year July 1. Investments limited to instruments eligible for Maryland local-government funds.

Article VII — Meetings

Quarterly. At least two meetings each year shall be held in Doubs, Adamstown, or Buckeystown. Maryland Open Meetings Act applies. Minutes posted.

Article VIII — Conflicts

A member shall recuse if a household member is employed by a CDI operator. Annual written disclosure.

Article IX — Amendment and expansion lock

Bylaws change only by four-fifths of the board and a County Council ordinance. Article II (purpose) and the geography lock in Article III may not be amended to add other communities — including Frederick City — except by (1) a board vote on the proposed expansion and (2) a new County Council ordinance titled as an expansion. No freeloader expansion by silence, ZIP stretch, or informal courtesy. Before any board vote on a Tier 1 geography change covered by Article IX-A, the board shall complete the elder consult required by that Article.

Article IX-A — Elder consult on geography changes

Before the board votes on any Tier 1 geography change, the board shall consult in good faith with ten residents age 65 or older who have lived in Doubs, Adamstown, or Buckeystown for at least ten years. The consult is advisory, on the record, and not a veto. A short summary of who was consulted and what was heard shall be published with the meeting minutes.

Geography changes subject to this Article include: (a) expanding Tier 1 beyond this rural road-box (which still also requires a board vote under Article IX AND a new County Council ordinance titled as an expansion); and (b) any other amendment to the Article III geography lock, including attempts to stretch ZIP codes, add “nearby” places, or make informal courtesy adds.

This Article does not apply to routine clerical corrections of addressing errors on an already-published meter list that do not enlarge Tier 1 geography. Publishing that list, and correcting it inside the road-box, is implementation — not an expansion, and not a separate Doubs count.

Article X — Dissolution

On dissolution, remaining funds pay one last dividend to eligible meters in the rural road-box. Any residue goes only to energy-burden aid within that Tier 1 geography.

Schedule A — Payment rule (proposed with the ordinance; not enacted law until adopted)

Proposed floor: **\$250** per eligible meter per year once any CDI hall on the overlay is energized. Formula: **\$1 per megawatt-hour** of campus IT load in the prior twelve months, allocated only to eligible meters in the rural road-box (Doubs, Adamstown, and Buckeystown). The annual credit is the formula result, not less than the floor and not more than the cap. Proposed cap: **\$1,000** per meter per year until the Council raises it by resolution. Rates are not lowered for passage.

Illustration, not a tariff, on the soft print of about **2,000** meters: floor pool $\approx$ **\$500,000** / year; cap pool $\approx$ **\$2,000,000** / year. One **72 MW** hall at **70%** load $\approx$ **\$441,000** / year company-side ($\approx$ **\$221** / meter). Not law until Council enacts.

Preferred payment: line on the electric bill. Default: county rebate or property-tax credit labeled DAB Energy Dividend (Doubs · Adamstown · Buckeystown). Default: no certificate of occupancy for

additional CDI load if the Trust is unpaid.

Medium confidence on the home and resident print; exact GIS clip pending. Roughly **1,700–2,500** housing units and **4,600–6,700** residents. Not ZIP **21704**, and not any ZIP. Adamstown **710** + Buckeystown **499** = **1,209** are Adamstown / Buckeystown CDP 2020 stats (not the Trust base).